



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 22, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20604
(SECOND REVISION)

EXPIRATION DATE: 2027-10-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Elster American Meter Company, LLC
Nebraska City, NE
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of lithium ion cells and batteries contained in equipment and lithium metal cells and batteries contained in equipment without being marked as required in § 173.185(c)(3)(i) when transported by motor vehicle between the grantee and certain distribution centers. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.301(c) in that the outside of each package must be marked with the special permit number, § 173.185(c)(3)(i) in that each package must be marked, and § 173.185(c)(2) in that the equipment must be packaged, except as provided herein.
5. BASIS: This special permit is based on the application of Elster American Meter Company, LLC dated November 10, 2023, submitted in accordance with § 107.109.

Tracking Number: 2023114498

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries contained in equipment <i>including lithium ion polymer batteries</i>	9	UN3481	N/A
Lithium metal batteries contained in equipment <i>including lithium alloy batteries</i>	9	UN3091	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The lithium cells and batteries contained in equipment are packaged in utility meters or utility meters with an installed encoder-receiver-transmitter (ERT) in accordance with Elster American Meter Company, LLC's drawings on file with the Office of Hazardous Materials Safety (OHMS). The equipment must be palletized in accordance with the configuration on file with the OHMS and as follows:

- (1) When palletized, the cells and batteries must face the center of the pallet.
- (2) Each layer of equipment must be separated by a layer of fiberboard, and the top of the pallet must be covered with fiberboard.
- (3) Each assembled pallet must be shrink-wrapped or stretch-wrapped.
- (4) No more than 200 pieces of equipment may be placed on a pallet.
- (5) The gross weight of each pallet may not exceed 1,000 pounds (454 kg).

b. OPERATIONAL CONTROLS:

- (1) Lithium metal cells or batteries contained in equipment must not exceed 5 g. in lithium content per piece of equipment.
- (2) Lithium ion cells or batteries contained in equipment must not exceed 60 Wh or 100 Wh in energy content, respectively, per piece of equipment.

(3) Each piece of equipment, consisting of a utility meter, may contain no more than a single cell or a two-cell battery in accordance with the configuration on file with OHMS.

(4) Each piece of equipment, consisting of a meter mounted with an ERT, may contain no more than a single cell or a two-cell battery in accordance with the configuration on file with OHMS. A cell or a two-cell battery cannot be contained in both the ERT and the meter.

(5) Transportation is only authorized from the grantee sites in Nebraska City, NE, Cartersville, GA, and Raleigh, NC to the utility distribution centers on file with the OHMS.

(6) Shipping papers conforming to Subpart C of Part 172 are required and must include an indication that pieces of equipment offered under the terms of this special permit must remain secured to the pallet and be overpacked while in transportation.

c. TESTING: Each lithium metal cell and battery and each lithium ion cell and battery must be a type that has passed the required tests in accordance with the UN Manual of Tests and Criteria, 6th Revised Edition. Additionally, each meter must have passed a 30-inch height drop test as specified in Elster American Meter Company, LLC's application.

d. MARKING: Each overpack must be durably and legibly marked and displayed on two opposing sides of the overpack on a background of contrasting color with the word "OVERPACK", "DOT-SP 20604" and the words "Ground Transport Only" in letters at least 12 mm (0.5 inches) high and with the handling mark in accordance with § 173.185(c)(3)(i).

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

b. A current copy of this special permit must be maintained at each facility where the shrink- or stretch- wrapped pallet is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

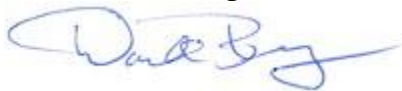
Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BULKLEY